

P L D 2023 Lahore 97

Before Jawad Hassan, J

Malik MEHBOOB---Petitioner

Versus

COMMISSIONER, RAWALPINDI and others---Respondents

Writ Petition No. 2353 of 2022, heard on 28th September, 2022.

(a) Punjab Civil Administration Act (III of 2017)---

----Ss. 15 & 19---Constitution of Pakistan, Art. 199---Constitutional petition---Revenue record, correction of---Powers of Deputy Commissioner---Scope---Petitioner filed application under S. 19 of Punjab Civil Administration Act, 2017 for conducting an inquiry regarding maladministration of Sub-Registrar/Revenue Functionary regarding irregularities in revenue record---Validity---Deputy Commissioner under S. 15 of Punjab Civil Administration Act, 2017 on his own or on the request of head of local government or head of district police could convene a meeting for purposes of maintaining public order and public safety and safeguarding public or private properties in the district---Provision of Ss. 15 & 19 of Punjab Civil Administration Act, 2017 were intertwined---Provision of S. 15 of Punjab Civil Administration Act, 2017 only dealt with safeguarding public or private properties and not declaration of title of any property---Intent of Legislature as depicted from Preamble of Punjab Civil Administration Act, 2017 was only to empower Deputy Commissioner to institute a comprehensive system of civil administration in Punjab for (i) efficient administration; (ii) improved service delivery; (iii) better coordination; (iv) supervision; and (v) regulatory enforcement---Provision of S. 15(2) of Punjab Civil Administration Act, 2017 could not be applied separately without fulfilling requirement of S.15 (1) of Punjab Civil Administration Act, 2017---Deputy Commissioner had no powers to go beyond his functions and was bound to fulfill requirements of Punjab Civil Administration Act, 2017---High Court declined to interfere in the matter as there was no illegality or irregularity in order in question---Constitutional petition was dismissed, in circumstances.

Tariq Iqbal Malik v. Messrs Multiplierz Group Pvt. Ltd. and 4 others 2022 CLD 468 rel.

(b) Interpretation of statutes---

----Preamble---Scope---Statute in general and subsection of a section are to be read together with the Preamble to understand true purpose and meaning of a particular provision.

Saudi Pak Industrial and Agricultural Investment Company (Pvt.) Ltd., Islamabad v. Messrs Allied Bank of Pakistan and another 2003 CLD 596; R. V. Venkataswami Naidu v. Narasram AIR 1966 SC 361; Tehsildar Singh v. State of U. P. AIR 1959 SC 1012; Gurmej Singh v. Partab Singh AIR 1960 SC 122; State of Bihar v. Hiralal AIR 1960 SC 47; Chenab Flour and General Mills and others v. Federation of Pakistan

through Secretary Revenue Division and others PLD 2021 Lah. 343; ABWA Knowledge Pvt. Ltd. v. Federation of Pakistan and others PLD 2021 Lah. 436 and ABWA Knowledge Village Pvt. Ltd. through Director and another v. Federation of Pakistan, through Secretary, National Health Services and another 2021 MLD 1455 rel.

Riaz H. Rahi, Advocate Supreme Court for Petitioner.

Mirza Asif Abbas, Assistant Advocate-General with Saqib Manan, Commissioner, Rawalpindi, Hafiz Mohsin Ali Zafar, Law Officer and Zarina Siraj, Assistant Commissioner (Revenue), Rawalpindi for Respondents.

Date of hearing: 28th September, 2022.

JUDGMENT

JAWAD HASSAN, J.---The Petitioner through this Petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") has impugned the order dated 30.05.2022 passed by Respondent No.3/Assistant Commissioner (Revenue), Rawalpindi being illegal and unlawful.

2. Brief facts of the case are that the Petitioner moved an Application under section 19 of the Punjab Civil Administration Act, 2017 (the "Act") for conducting an inquiry regarding maladministration of Sub-Registrar/Revenue functionary on 13.11.2021 to Respondent No.1/Commissioner Rawalpindi Division, Rawalpindi vide Diary No.11652, who entrusted the same to Respondent No.2/Additional Commissioner Coordination, Rawalpindi and the same was later on decided by Respondent No.3/Assistant Commissioner (Revenue), Rawalpindi.

3. Mr. Riaz H. Rahi, ASC submits that through the aforesaid Application the Petitioner pointed out certain irregularities in the revenue record with regard to Registry No.4251 and requested for conducting an enquiry into the matter but the said Respondent has not dealt with his (aforesaid) application on merit and returned the same on the ground that the only remedy available to the Petitioner is to approach the Civil Court of competent jurisdiction.

4. When confronted how writ is maintainable because against the impugned order, the Petitioner can pursue remedy before the higher authority or the Civil Court concerned under the relevant law dealing with such issues, Mr. Riaz H. Rahi, ASC submits that since the Commissioners, Deputy Commissioners and Assistant Commissioners have been appointed under Section 3 of the Act with the functions given under Sections 4 to 6 of the Act to deal with an enquiry on a complaint or any other information received under Section 19 of the Act, the impugned order of referring the matter to Civil Court is against the spirit of law, hence, this petition has been filed for its judicial review. He states that under Article 4 of the Constitution it is an inalienable right of every citizen to be treated in accordance with law and no action detrimental to his or her life, liberty and property shall be taken except as per law. He adds that as per the rule of law, providing quick access to justice is the basic/primary duty of all the governmental authorities/forums which ought to have assumed their powers to lessen the burden on the judiciary but the impugned order passed by Respondent No.3 is an example of burdening the judiciary.

5. Conversely, learned Law Officer and Mr. Saqib Manan, Commissioner, Rawalpindi objected to the maintainability of this Petition by submitting written submission. Deputy Commissioner further stated that the matter was remitted to Respondent No.3, which was disposed of in the following manner:

"2. It is intimated that the matter has been looked into as desired and you may pursue remedy in Civil Court of competent jurisdiction. Concerned quarters may be approached if/as per the court decisions afterwards."

Learned Law Officer further submits that the Petitioner has also filed an Application to the Director Anti-Corruption and FIR was also lodged against the accused. Furthermore, regarding the same property a civil suit titled "Syed Ishtaq Hussain v. Province of Punjab" is also pending adjudication before the learned Civil Court Rawalpindi. Further submitted that the Petitioner is habitual litigant and files number of writ Petitions just to pressurize the public functionaries. He added that earlier W.P. No. 3516 of 2021 was dismissed vide order dated 13.12.2021 while the subsequent W.P. No.3770 of 2021 vide order dated 14.01.2022, which has been assailed in I.C.A. No.03 of 2022.

6. Heard Record perused.

7. From perusal of record it reveals that legislative intent of the Act is clear and obvious from its Preamble that it has been enacted to form a comprehensive system of civil administration in the Punjab for (i) efficient administration; (ii) improved service delivery; (iii) better coordination; (iv) supervision; and (v) regulatory enforcement. The controversy raised hinges on the scope, extent and nature of the powers of the Commissioner in terms of sections 15 and 19 of the Act. Before proceeding to determine and decide the controversy, it is expedient to reproduce relevant sections 15(1)(2) and 19 of the Act of 2017, which are as under:

15. Public order etc.---(1) The Deputy Commissioner on his own, or on the request of the head of a local government or head of the District Police, may convene a meeting for purposes of maintaining public order and public safety and safeguarding public or private properties in the District; and, the decisions taken in the meeting shall be executed by all concerned accordingly.

(2) Notwithstanding anything in subsection (1), in case of any unforeseen or sudden situation that threatens or is likely to threaten public order, public safety or public and private properties in the District, the Deputy Commissioner and the head of the District Police shall jointly take appropriate action to address the situation.

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19. Enquiry.---(1) The Commissioner or the Deputy Commissioner may, on a complaint or any other information, cause an enquiry to be made by such officer as he may deem appropriate, into the affairs of an office or a public facility and take appropriate action in accordance with law.

(2) Any person aggrieved by any case of maladministration, neglect, excess or misconduct by any employee serving in a District or is dissatisfied with a public service may make a complaint in writing under his signature to the Deputy Commissioner.

(3) The Deputy Commissioner may either himself or through an officer subordinate to him take such action in accordance with law as may be necessary to redress the legitimate grievance of the complainant.

(4) It shall be the duty of every head of office and officer-in-charge of the public facility to comply with the directions under subsection (3) and shall report compliance to the Deputy Commissioner or inform him of the reasons on account of which the direction cannot be implemented.

(5) On receipt of the report from a head of office or officer-in-charge of a public facility, the Deputy Commissioner may either withdraw the direction or, if he is not satisfied with the reasons, report the matter to the Government for action in accordance with law.

(6) The inquiry officer shall, for purposes of the inquiry, have all the powers of a civil court under the Civil Procedure Code, 1908 (V of 1908) in relation to summoning and enforcing the attendance of any person and examining him on oath, compelling the production of documents, receiving evidence on affidavits, and issuing commission for the examination of witnesses.

Section 15(1) clearly states that the Deputy Commissioner on his own, or on the request of the head of a local government or head of the District Police, may convene a meeting for purposes of maintaining public order and public safety and safeguarding public or private properties in the District and this Section is intertwined with the section 19 of the Act. Furthermore, section 15(1) only deals with the safeguarding of public or private properties and not declaration of title of any property.

8. For interpreting provision of section 15(1)(2) of the Act the powers of the Deputy Commissioner have to be seen because he is empowered to invoke such Sections under section 5 of the Act which deals with his functions. For ready reference the same is reproduced as under:

5. Functions of the Deputy Commissioner.---A Deputy Commissioner, in addition to the functions mentioned in subsection (4) of section 3 and section 15, shall:

(a) supervise and monitor the discharge of duties by the Assistant Commissioners in the District;

(b) coordinate the work of all the offices and public facilities in the district for purposes of integrated development, efficient use of public resources and effective service delivery;

(c) support and facilitate the offices and public facilities in the District;

(d) ensure that the standards set by the Government in respect of a public facility are fully observed; and

(e) supervise and coordinate the implementation of the policies, instructions and guidelines of the Government.

Section 5 clearly mentions the word "functions" not "powers" for the Deputy Commissioner to supervise, coordinate and monitor the discharge of duties in addition to the functions mentioned in Subsection (4) of Section 3 and Section 15 of the Act. Therefore, this Section only confines to supervision and not power of declaration of any property. Definitions of "Function" and "Power" as per dictionaries are as under:

POWER:

Merriam Webster defines word power as "legal or official authority, capacity, or right".

Cambridge English dictionary defines word power as "an official or legal right to do something".

Collins dictionary describes word power as "If someone in authority has the power to do something, they have the legal right to do it". Britannica Dictionary defines word power as "the right to do something: legal or official authority to do something".

FUNCTION:

Merriam Webster defines word function as "professional or official position: OCCUPATION, the action for which a person or thing is specially fitted or used or for which a thing exists : PURPOSE and any of a group of related actions contributing to a larger action."

Cambridge English dictionary defines word function as "the natural purpose (of something) or the duty (of a person), the way in which something works or operates".

Collins dictionary defines word function as "The function of something or someone is the useful thing that they do or are intended to do".

Britannica Dictionary defines word function as "the special purpose or activity for which a thing exists or is used, the job or duty of a person, to work or operate".

9. It is well established principle of law that the Statute in general and subsections of a Section are to be read together with the Preamble to understand the true purpose and meaning of particular provision. In "Saudi Pak Industrial and Agricultural Investment Company (Pvt.) Ltd., Islamabad v. Messrs Allied Bank of Pakistan and another" (2003 CLD 596) the Hon'ble Supreme Court of Pakistan held that "it is a fundamental principle of interpretation of documents and statutes that they are to be interpreted in, their entire context following a full consideration of all provisions of the document or statute, as the case may be, that every attempt shall be made to save the document and for this purpose a difference between general statements and particular statements of the document be differentiated properly, to save the document rather to nullify it that no provision of the document be read in isolation or in bits and pieces, but the entire document is to be read as a whole to gather the intention of the parties, that the Court for this purpose can resort to the correspondence exchanged between the parties, that the Court shall lean to an interpretation, which will effectuate rather than one, which will invalidate an instrument. In the case reported as "R. V. Venkataswami Naidu v. Narasram" (AIR 1966 SC 361) Supreme Court of India observed "A section has only one interpretation and one scope; a process resulting in more than one interpretation and scope is clearly erroneous." In another case reported as Tehsildar Singh v. State of U. P. (AIR 1959 SC 1012, 1022) Supreme Court of India held "Every section must be considered as a whole and self-contained." Moreover, in case reported as Gurmej Singh v. Partab Singh (AIR 1960 SC 122, 124) Supreme Court of India explained about the interpretation of subsections of section and observed "it is an elementary rule that construction of a section is made of all parts together." Lastly in the case reported as State of Bihar v. Hiralal (AIR 1960 SC 47, 50) Supreme Court of India explained the principle of interpretation of subsections of

section and observed "it is not permissible to omit any part of it."

10. It is worth mentioning here that the principle of reading Preamble have been developed by this Court in the judgment reported as *Chenab Flour and General Mills and others v. Federation of Pakistan through Secretary Revenue Division and others* (PLD 2021 Lahore 343), wherein it has been held that the Statute in general and Subsections of a Section will be read together with the Preamble to understand the true purpose and meaning of a particular provision. Reliance is also placed on the judgment of this Court cited as *"ABWA Knowledge Pvt. Ltd. v. Federation of Pakistan and others"* (PLD 2021 Lahore 436), wherein this Court has interpreted the provision of Section 18 of the Pakistan Medical Commission Act, 2020 with the Preamble and the same has been upheld by the learned Division Bench of this Court vide judgment reported as *"ABWA Knowledge Village Pvt. Ltd. through Director and another v. Federation of Pakistan, through Secretary, National Health Services and another"* (2021 MLD 1455) as well as by the Hon'ble Supreme Court of Pakistan.

11. For what has been discussed above, it is clarified that sections 5, 15 and 19 are closely tied with each other and are intertwined and the same cannot be separately applied in the case of the Petitioner. As learned counsel for the Petitioner stated that while passing the impugned order the Respondent has not considered the provision of section 15(2) of the Act, which according to doctrine of intertwined cannot be applied separately and without fulfilling the requirement of section 15(1) *ibid*. In the recent judgment of this Court passed at Rawalpindi Bench, reported as *"Tariq Iqbal Malik v. Messrs Multiplierz Group Pvt. Ltd. and 4 others"* (2022 CLD 468) has also developed the doctrine of intertwined. For ready reference the relevant paragraphs of the judgment are reproduced as under:

17. In order to discuss the Doctrine of Intertwined whether section 257 of the Act can be invoked straightway without referring to section 256 of the Act, can be seen from the facts of this case.

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18. When confronted to counsel for the Petitioner whether the petition in hand can be filed against the Respondents without complying with requirement of section 256 of the Act, learned counsel states that the Petitioner has only invoked section 257 of the Act and not section 256 thereof. While, learned counsel for the Respondent Barrister Syed Ali Rizvi states that section 257 has to be read with Section 256 of the Act because it starts with the powers of the Commission to investigate into the affairs of the Company. It is evident from the record that the Petitioner is only a real estate dealer and is neither the member or shareholder of any Respondents against which he is seeking relief by making aforementioned prayer before this Court. It is pertinent to mention here that under the Doctrine of Intertwined, the Petitioner has to fulfil the requirements of section 256 of the Act regarding locus standi of being member, qualification of member and company against whom the relief is being sought but in the present case, the Petitioner being a person has no nexus with the Respondents' companies, not being member of any of the Respondents' company as is evident from the record of SECP. He has filed this petition solely under section 257 of the Act without fulfilling the preconditions as elaborated in the case of *"Depilex Smileagain Foundation (2019 CLD 861 [Lahore])"*.

Therefore, the argument of learned counsel for the Petitioner that the Respondent/Deputy Commissioner has not taken action as per section 15(2) *ibid*, has no substance because the intent of legislature as depicts from Preamble of the Act, is only empowers him to institute a comprehensive system of civil administration in the Punjab for (i) efficient administration; (ii) improved service delivery; (iii) better coordination; (iv) supervision;

and (v) regulatory enforcement. Hence, the provision of section 15(2) cannot be applied separately without fulfilling the requirement of Section 15(1) of the Act. Therefore, the Deputy Commissioner has no powers to go beyond his functions and is bound to fulfil the requirements of the Act.

12. No illegality or irregularity has been found in the impugned order. This writ Petition fails and is hereby dismissed.

MH/M-207/L

Petition dismissed.